

		Herscovitz-Langstaff also declares that no proceeding is now pending in the State of California for administration of the Estate of William N. Langstaff. (See <i>id.</i>, ¶ 3.) She also states that no other person has a superior right to commence this action or to be substituted for Plaintiff William N. Langstaff, DDS in in this action. (See <i>id.</i>, ¶ 5). Finally, Herscovitz-Langstaff declares under penalty of perjury under the laws of the State of California that the above statements are true and correct. ((See <i>id.</i> at p. 2.) Here, Langstaff-Herscovitz has complied with the requirements of Section 377.32. Further, no opposition or response to the motion has been filed. Thus, any arguments regarding the motion have been waived. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Therefore, the court will grant the motion Successor in Interest Toby Herscovitz-Langstaff shall give notice of this ruling.
4	Doe vs. Jean Reno, LLC 30-2025-01505591	<u>Motion to Be Relieved as Counsel</u> Counsel Matt D. Zumstein’s and Shaida Shahinfar’s Motion to Be Relieved as Counsel For Defendant Jean Reno, LLC dba Glyph Salon is taken OFF CALENDAR pursuant to Defendant Jean Reno LLC dba Glyph Salon’s Notice of Withdrawal of Motion to Be Relieved as Counsel filed on June 2, 2026 (ROA #72).
5	Knoll vs. Colbert	<u>Motions to Be Relieved as Counsel</u>

	30-2023-01359863	Counsel William J. Brown, Jr.'s and Matthew K. Wegner's Motion to Be Relieved as Counsel for Plaintiff PHA Professional Services, Inc. is GRANTED. Counsel William J. Brown, Jr.'s and Matthew K. Wegner's Motion to Be Relieved as Counsel for Plaintiff SC Equipment Company, LLC is GRANTED. Counsel William J. Brown, Jr. and Matthew K. Wegner are ORDERED to submit to this court a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), that is completely and correctly completed, within 10 days of this ruling. Within 15 days of receiving the signed Form MC-053 back from the court, Counsel William J. Brown, Jr. and Matthew K. Wegner are ORDERED to serve Plaintiffs PHA Professional Services, Inc. and SC Equipment Company, LLC with the signed Form MC-053, notice of the Order to Show Cause hearing set forth below, and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d). Counsel William J. Brown, Jr. and Matthew K. Wegner shall be relieved as counsel of record for Plaintiffs PHA Professional Services, Inc. and SC Equipment Company, LLC effective upon the filing of a proof of service showing timely service of the signed Form MC-053, notice of the Order to Show Cause hearing, and notice of this ruling. The Court SETS a hearing on an Order to Show Cause re: Dismissing Plaintiff PHA Professional Services, Inc. and/or Plaintiff SC Equipment Company, LLC from the Complaint for Failure to Retain Counsel on October 15, 2026 at 10:00 am in Department N15. <u>Pending Motion</u> Counsel William J. Brown, Jr. and Matthew K. Wegner (Counsel) move to be relieved as counsel for Plaintiffs PHA Professional Services, Inc. and SC Equipment Company, LLC. <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the
--	--------------------------------	---

		order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, "[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, "[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney's Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers." (Cal. Rules of Court, rule 3.1362(e), italics original.) Motions to be relieved as counsel "must be served on the client and on all other parties who have appeared in the case" and service must be made by "personal service, electronic service, or mail." (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) "As used in this rule, 'current' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely
--	--	---

		demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (<i>Ibid.</i>) If the motion is served by electronic mail, "it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (Cal. Rules of Court, rule 3.1362(d)(2).) The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client's insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.) However, under the Rules of Professional Conduct, "a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e)." (Rules Prof. Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in "undue prejudice to the client's interests," (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or "an unreasonable disruption of the orderly processes of justice," (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney's request to withdraw "where such withdrawal would work an injustice or cause undue delay in the proceeding". (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) In this case, Counsel has complied with the requirements of the California Rules of Court, including serving the client with the motion papers by electronic mail at the client's last known address and confirming within the last 30 days that the address is the client's current address.
--	--	---

	Counsel also has declared a justifiable reason to be relieved as counsel — that the clients agreed to obtain replacement counsel but have failed to do so. In addition, there are no substantive hearings on calendar and the matter has been settled. (See ROA #408.) The next hearing in this matter is on an Order to Show Cause re: Dismissal Settled Case, which is set more than 3 months from now, on October 15, 2026. (See ROA #411.) Thus, Plaintiffs PHA Professional Services, Inc. and SC Equipment Company, LLC will have sufficient time to find new counsel and will not be unduly prejudiced in their ability to prepare for and try the case. In addition, no opposition has been filed setting forth prejudice to Plaintiff PHA Professional Services, Inc.; Plaintiff SC Equipment Company, LLC; or any other party should the court grant the motion to be relieved as counsel. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue].) Therefore, the court will grant the motion to be relieved as counsel. However, Plaintiff PHA Professional Services, Inc. and Plaintiff SC Equipment Company, LLC are corporations, limited liability companies, or other artificial legal entities that cannot represent themselves and must retain counsel to act on their behalf in court. (See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 fn.5; <i>Rogers v. Sonoma County Municipal Court</i> (1988) 197 Cal.App.3d 1314, 1318.) While the ban on self-represented artificial legal entities does not prevent the court from granting the motion to withdraw, it does place pressure on Plaintiffs PHA Professional Services, Inc. and SC Equipment Company, LLC to obtain new counsel or risk forfeiting important rights through non-representation, such as dismissal of the action. (See <i>Rogers v. Sonoma County Municipal Court, supra</i>, 197 Cal.App.3d at p. 1318; <i>Ferruzzo v. Superior Court</i> (1980) 104 Cal.App.3d 501, 504.)
--	---

		Therefore, it is incumbent upon the court and Counsel to advise the Plaintiff PHA Professional Services, Inc.; Plaintiff SC Equipment Company, LLC; or their representatives of the necessity of obtaining representation and to ensure that they obtain representation. (See <i>Rogers v. Sonoma County Municipal Court</i>, <i>supra</i>, 197 Cal.App.3d at p. 1318.) The court will issue an order to show cause regarding dismissing Plaintiff PHA Professional Services, Inc. and/or Plaintiff SC Equipment Company, LLC from the Complaint, and will order that Counsel serve Plaintiffs PHA Professional Services, Inc. and SC Equipment Company, LLC with the order relieving counsel, notice of the order to show cause re: dismissing the plaintiffs for failure to retain counsel, and notice of this ruling. Counsel shall give notice of this ruling in the manner ordered by the court.
6	Habibi vs. Yang-Davies 30-2025-01471995	<u>Motion to Quash</u> Defendant Brian Davies’ Motion to Quash Proof of Service of Summons is GRANTED. <u>Pending Motion</u> Defendant Brian Davies moves to quash service of process of the summons in in this action. <u>Standard to Quash Service of Process</u> A court lacks personal jurisdiction over a defendant if there has not been proper service of process upon that defendant. (See Code Civ. Proc., § 410.50 [“A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served.”]; <i>Ellard v. Conway</i> (2001) 94 Cal.App.4th 540, 544 [compliance with statutory procedures for service of process is essential for court to establish personal jurisdiction over defendant].) Therefore, “[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for